



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TPR Jonathon King #302

Work Assignment: Troop/Division - A; Post/Unit – 5 - Dalton

INCIDENT REPORT # DPS00163379

Related Crash Reports: C000940053 ; C000940054 ; C000940055

P.I.T. Involved: No

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: No

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 3/4/2024

Time: 1255 Hours

Location: Via Conference Call

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Tim Nichols #36, SGT Ben Boyd #357 and TPR Jonathon King #302

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 2/1/2024

Time: 1433 Hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

On 2/1/2024, Drug Enforcement Administration Agent J. Williams contacted SGT Boyd #357 and requested the Georgia State Patrol's assistance in performing a traffic stop on a black Toyota Tundra. Agent Williams stated the driver of the Toyota (Dustin A. Frisbee) had made a drug transaction with an undercover drug agent earlier and was believed to be in possession of a large amount of drugs. SGT Boyd then relayed the information to TPR King. TPR King located the Toyota traveling east on GA 201 just west of Lake Kathy Road. When the Toyota turned left onto Lake Kathy Road, TPR King activated his emergency lights and conducted a traffic stop. As TPR King approached the left side of the Toyota, the driver fled and a pursuit ensued.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☐ N/A

If Yes, explain: DEA Agent J. Williams contacted SGT Boyd and requested the Georgia State Patrol's assistance in performing a traffic stop on a black Toyota Tundra. Agent Williams advised the driver had made a drug transaction with an undercover drug agent and was believed to be transporting a large amount of drugs inside the vehicle.

4. List the number and identity of other agencies and officers involved in the pursuit.

☒ N/A

If needed, list:

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A

If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes

☐ No

If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes

☐ No

If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A

If Yes, explain: TPR King contacted the Troop A Communications Center and advised them that he was initiating a traffic stop. He provided the vehicle description, location and tag number. When the violator fled, TPR King advised he was in pursuit. Dispatcher Carden immediately cleared the radio for emergency traffic.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes

☐ No

If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A

Explain: Once the pursuit initiated, Dispatcher Carden cleared the radios for emergency traffic before conducting a broadcast of the pursuit to all Troop A Troopers. Dispatcher Silvers contacted the Whitfield County 911 Center to advise them of the pursuit and to request assistance.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☐ N/A

If Yes, explain: Once TPR King located the vehicle, he confirmed with the DEA that it was the correct vehicle prior to initiating the traffic stop.

5. Did the trooper articulate his observations?

☒ Yes

☐ No

If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes

☐ No

If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A

If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on Lake Kathy Road at its intersection with GA 201. The pursuit traveled north on Lake Kathy Road for approximately .75 miles and terminated when the suspect steered the vehicle off the road and entered a privately owned pasture. The pursuit lasted approximately 51 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes

☐ No

If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☒ N/A

If Yes, explain:

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A

If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☒ N/A If Yes, explain:

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes ☐ No If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes ☐ No If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes ☐ No If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes ☐ No If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes ☐ No If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes ☐ No If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☒ No If Yes, explain:

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☐ Yes ☒ No If no, explain: On this date at the beginning of his shift, TPR King's patrol car had to be jumped-off due to the battery being dead. As a result, TPR King's body mic was dead and was in the charging base when the pursuit began.

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☐ Yes ☒ No If no, explain: After leaving the roadway, the violator continued to flee through fields/pastures and areas that TPR King's vehicle could not navigate.

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☐ N/A If Yes, explain: Although TPR King could not positively identify the driver of the Toyota, the DEA Agents were certain it was the same subject who had made the drug transaction with the undercover agent.

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☒ N/A Explain:

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A Explain: TPR King utilized all his emergency equipment throughout the pursuit and operated his patrol vehicle in a responsible manner.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during daytime hours with clear skies and a dry road surface. The traffic conditions at the time of the pursuit would be described as light.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☒ N/A If Yes, explain:

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☒ N/A If Yes, explain:

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A If Yes, explain: The suspect fled at high speeds and drove on the wrong side of the road in an attempt to avoid apprehension. He showed no regard for the safety of

himself, his passengers or the public. After the suspect's vehicle was disabled, he fled on foot and after an extensive search, was located in the crawl space of a local residence.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☒ N/A If Yes, explain:

11. If there were any injuries, state who received them, the type and severity.

☒ N/A If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☐ N/A If Yes, explain: The suspect's vehicle sustained damage as a result of driving through the fields/pastures and striking multiple fences and fence posts.

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: This was TPR King's first pursuit as a Georgia State Trooper.

2. Past use of techniques and high speed driving.

☐ N/A If Yes, explain: TPR King has received E.V.O.C. and Advanced E.V.O.C. Training

ISSUES ADDRESSED

1. Positives.

☒ N/A If Yes, explain:

2. Areas for improvement.

☒ N/A If Yes, explain:

3. Other considerations.

☒ N/A If Yes, explain:

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☒ N/A If Yes, explain:

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

☐

N/A

If Yes, explain: TPR King was issued a Documented Verbal Warning for not having his body microphone activated during the pursuit.

Lt. T. L. Nichols #36
Reviewing Officer

Lt. T. L. Nichols #36

3/4/2024

Date